County Council Meeting
Beaufort County, SC

Council Chambers, Administration Building
Beaufort County Government Robert Smalls Complex
100 Ribaut Road, Beaufort

Tuesday, May 26, 2026
6:00 PM

MINUTES

Watch the video stream available on the County's website to hear the Council's discussion of a specific topic or the complete meeting https://beaufortcountysc.new.swagit.com/videos/389182

1. Call to Order

Chair Howard called the meeting to order at 6:05 PM

Present
Chair Alice Howard
Vice-Chair Anna Maria Tabernik
Council Member Paula Brown
Council Member Logan Cunningham
Council Member Gerald Dawson
Council Member York Glover
Council Member Mark Lawson
Council Member Lawrence McElynn
Council Member Joseph Passiment
Council Member Thomas Reitz

Absent
Council Member David Bartholomew

2. Pledge of Allegiance and Invocation

Council Member McElynn led the Pledge of Allegiance and gave the invocation.

3. Statement of Compliance with FOIA

Chair Howard stated that public notification of this meeting had been published, posted, and distributed in compliance with SC FOIA.

4. Approval of Agenda

Motion: It was moved by Council Member Passiment, seconded by Council Member Lawson to approve the agenda.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

5. Approval of Minutes

Motion: It was moved by Council Member Passiment, seconded by Council Member Cunningham to approve the minutes from Caucus and County Council May 11, 2026.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

6. Administrators Report

Michael Moore, County Administrator, updated Council on the upcoming hurricane season.

7. Public Comment Period

Public comments were made. Please watch the video stream on the county's website to view the full comments.**https://beaufortcountysc.new.swagit.com/videos/389182**

8. Liaison and Committee Reports

No reports were given.

9. Approval of Consent Agenda

Motion: It was moved by Council Member Passiment, seconded by Council Member Dawson to approve the consent agenda.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, and Council Member Passiment.

Recused: Council Member Reitz. The motion passed 9:0:1.

CONSENT AGENDA

a. Items Originating from the Public Facilities and Safety Committee

1. Contract award to D. Anderson Construction, Inc. for the construction of Saint James Baptist Church and the Relocation of Cherry Hill School ($7,716,534.00)

2. A Memorandum of Understanding with SC DOT for an encroachment permit regarding "Welcome to Beaufort County Signs"

3. A Change Order to Nix Construction for the Buckwalter Recreation Athletic Complex Expansion (BRACE) Project ($5,132,600.00) (Contingent upon final approval of budget amendment)

4. A Change Order to MUSCO Sports Lighting for the Buckwalter Recreation Athletic Complex Expansion (BRACE) Project ($593,890.00) (Contingent upon final approval of budget amendment)

5. Approval of a Contract to Jarrell Brothers for Bay Pines Drainage Improvements ($269,507.60)

6. Contract award to NIX Construction for upgrades to Station Creek Boat Landing ($589,300.00)

b. Items Originating from the Community Services and Public Safety Committee

1. A Contract for 22nd Century Technologies, Inc to provide a comprehensive onsite correctional health care program for the Beaufort County Detention Center inmate population in response to RFP 011326. ($1,701,992.10)

END OF CONSENT AGENDA

10. Ordinances for Third Reading

a. 2026/17: An Ordinance to amend Beaufort County's Budget Ordinance for Fiscal Year 2026 (ordinance no. 2025/29) to appropriate General Fund Fund Balance for the purpose of purchasing a helicopter for BCSO; redemption of certain General Obligation Bonds; and fully fund the Buckwalter Recreation Athletic Complex Expansion project. **PUBLIC HEARING**

The vote at Finance, Administration, and Economic Development Committee on April 20, 2026 - 9:0
The vote at First Reading on April 27, 2026 - 8:2
The vote at Second Reading on May 11, 2026 - 10:1

Motion: It was moved by Council Member Cunningham, seconded by Council Member Passiment to approve Third Reading and Public Hearing of Beaufort County Ordinance 2026/17.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz.

Voting Nay: Council Member Glover. The motion passed 9:1

b. 2026/18: An Ordinance Authorizing the Purchase of Real Property from the Town of Hilton Head Island for the St. James Baptist Church Relocation Project. **PUBLIC HEARING**

The vote at Public Facilities Committee on April 20, 2026 - 10:0
The vote at First Reading on April 27, 2026 - 10:0
The vote at Second Reading on May 11, 2026 - 11:0

Motion: It was moved by Council Member Reitz, seconded by Council Member Passiment to approve Third Reading and Public Hearing of Beaufort County Ordinance 2026/18.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

c. 2026/19: An Ordinance Authorizing the Conveyance of Real Property to St. James Baptist Church Following Completion of the Relocation Project. **PUBLIC HEARING**

The vote at Public Facilities Committee on April 20, 2026 - 10:0

The vote at First Reading on April 27, 2026 - 10:0
The vote at Second Reading on May 11, 2026 - 11:0

Motion: It was moved by Council Member Reitz, seconded by Council Member Passiment to approve Third Reading and Public Hearing of Beaufort County Ordinance 2026/19.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

d. 2026/22: An Ordinance to amend the current Disaster Recovery Ordinance. **PUBLIC HEARING**

The vote at Public Facilities Committee on April 20, 2026 - 10:0
The vote at First Reading on April 27, 2026 - 10:0
The vote at Second Reading on May 11, 2026 - 11:0

Motion: It was moved by Chair Howard, seconded by Council Member Brown to approve Third Reading and Public Hearing of Beaufort County Ordinance 2026/22.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

e. 2026/23: An Ordinance authorizing the County Administrator to execute all necessary documents to convey the County's Right of Way Interest in a segment of Scheper Lane to SCDOT and to accept the SCDOT Right of Way Interest in a segment of Roosevelt Avenue into the County Road Inventory. **PUBLIC HEARING**

The vote at Public Facilities Committee on April 20, 2026 - 10:0
The vote at First Reading on April 27, 2026 - 10:0
The vote at Second Reading on May 11, 2026 - 11:0

Motion: It was moved by Chair Howard, seconded by Council Member Passiment to approve Second Reading and Public Hearing of Beaufort County Ordinance 2026/23.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

f. 2026/24: An Ordinance authorizing the County Administrator to execute any and all necessary documents for the acceptance of a portion of Airport Circle (S-776) which is to be abandoned by SCDOT. **PUBLIC HEARING**

The vote at Public Facilities Committee on April 20, 2026 - 10:0
The vote at First Reading on April 27, 2026 - 10:0
The vote at Second Reading on May 11, 2026 - 11:0

Motion: It was moved by Council Member Glover, seconded by Council Member Passiment to approve Third Reading and Public Hearing of Beaufort County Ordinance 2026/24.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

g. 2026/25: An Ordinance authorizing the conveyance of an undeveloped portion of real property adjacent to Nanny Cove Road located in a section of Palmetto Beach in Bluffton Township, Beaufort County. **PUBLIC HEARING**

The vote at Public Facilities Committee on April 20, 2026 - 10:0
The vote at First Reading on April 27, 2026 - 10:0
The vote at Second Reading on May 11, 2026 - 11:0

Motion: It was moved by Council Member Passiment, seconded by Council Member Lawson to approve Third Reading and Public Hearing of Beaufort County Ordinance 2026/25.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

11. Ordinances for Second Reading

a. 2026/26: An Ordinance amending Chapter 38 Environment, Article VI Single Use Plastic Bags; Article VI Section 38-161 Purpose and Intent; Section 38-162 Definitions; Section 38-163 Regulations; Section 38-164 Exemptions; and Section 38-166 Effective Date and Review of the Beaufort County Code of Ordinances. **PUBLIC HEARING**

The vote at Natural Resources Committee on April 6, 2026 - 5:2
The vote at First Reading on May 11, 2026 - 6:5

Motion: It was moved by Council Member Passiment, seconded by Council Member Brown to approve Third Reading and Public Hearing of Beaufort County Ordinance 2026/26.

Vice-Chair Tabernik opened the floor for public comment.

Public comments were taken.

Vice-Chair Tabernik closed the floor for public comment.

Motion to Amend: It was moved by Council Member Passiment, seconded by Chair Howard to amend the Ordinance as follows: in section 38-163. Regulations. In paragraph (a), I move that the paragraph be amended to read as follows: (a) No person, business establishment, or governmental entity may provide plastic carry out bags or EPF disposable food service ware at any county facility, county-sponsored event, or any event held on county property located with unincorporated Beaufort County. In section 38-165. Penalties. In paragraph (a), I move that the paragraph be amended to read as follows: (a) Any business establishment that violates or fails to comply with any of the provisions of the chapter after a written notice has been issued for that violation shall be issued a citation for a civil violation. The civil penalty shall not exceed $100.00 for a first violation, $200.00 for a second violation within any 12-month period; and $500.00 for each individual violation within any 12-month period. Each day that a violation continues will constitute a separate offense. In paragraph (b) I move that the word "civil" be added in front of the word penalties in the first sentence.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion to amend passed 10:0

Main Motion: It was moved by Council Member Passiment, seconded by Council Member Brown to approve Third Reading and Public Hearing of Beaufort County Ordinance 2026/26 as amended.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Dawson, Council Member Glover, Council Member McElynn, and Council Member Passiment.

Voting Nay: Council Member Cunningham, Council Member Lawson, and Council Member Reitz. The amended motion passed 7:3.

12. Ordinances for First Reading

a. 2026/27: An Ordinance to provide for the levy of tax for school purposes for Beaufort County for the fiscal year beginning July 1, 2026, and ending June 30, 2027, and to make appropriations for said purposes.

The vote at Finance, Administration, and Economic Development Committee on May 18, 2026 - 8:0

Motion: It was moved by Council Member Passiment, seconded by Council Member Brown to approve First Reading of Beaufort County Ordinance 2026/27.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

b. 2026/28: An Ordinance amending Beaufort County Ordinance Chapter 102 Waterways. Article 1, sections 102–1 definitions, Article II, division 1, section 102-27, purpose, section 102-28, penalties, section 102-29, general prohibitions, section 102-30, dock rules, section 102-31, landing rules, division II, section 102-61, description, division 3, section 102-95, description, section 102-98, penalties, section 102-99 general prohibitions, section 102-100, dock rules, section 102-101, landing rules, Article III, section 102-133, definitions, section 102-134, penalties, section 102-136, student riders, section 102-137, public ridership.

The vote at Public Facilities Committee on May 18, 2026 - 8:0

Motion: It was moved by Council Member Passiment, seconded by Council Member Lawson to approve First Reading of Beaufort County Ordinance 2026/28.

Motion to Amend: It was moved by Council Member McElynn, seconded by Council Member Cunningham to amend Ordinance 2026/28 to direct staff to return to County Council no later than the June 8, 2026, meeting with proposed language and recommendations establishing a commercial use permitting framework for County boat landings, docks, and waterways facilities. The proposed framework shall include, at minimum: A requirement that any commercial operator utilizing County boat landings or related waterways facilities maintain a valid Beaufort County business license; A requirement for a County-issued commercial use permit prior to conducting any commercial activity from County landings or docks; A requirement that permit holders maintain not less than one million dollars ($1,000,000) in general marine liability insurance naming Beaufort County as an additional insured where appropriate; A requirement that permit applicants disclose any criminal convictions or pending criminal charges relevant to public safety, fraud, theft, violent conduct, or marine operations as part of the permitting process; and Recommendations for a reasonable user fee structure associated with commercial use permits, inspections, administration, and enforcement. Staff shall return with recommendations regarding implementation, enforcement mechanisms, fee schedules, and any necessary ordinance language for Council consideration at the June 8, 2026, meeting.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion to amend passed 10:0.

Main Motion: It was moved by Council Member Passiment, seconded by Council Member Lawson to approve First Reading of Beaufort County Ordinance 2026/28 as amended.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The amended motion passed 10:0.

c. 2026/29: An Ordinance to make appropriations for County Government and Special Purpose Districts for Beaufort County for the fiscal year beginning July 1, 2026, and ending June 30, 2027; to levy taxes for the payment thereof; to adopt service and user fees; to provide for the expenditure of said taxes and other revenues coming into the county; and other matters related thereto.

The vote at Finance, Administration, and Economic Development Committee on May 18, 2026 - 7:1

Motion: It was moved by Council Member Passiment, seconded by Vice-Chair Tabernik to approve First Reading of Beaufort County Ordinance 2026/29.

Motion to Amend: It was moved by Council Member McElynn, seconded by Council Member Reitz to fully fund the Island Rec in the amount of $17,621 and the funding will come from the vehicle equipment line item.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz.

Voting Nay: Council Member Cunningham. The motion to amend passed 9:1

Motion to Amend: It was moved by Vice-Chair Tabernik, seconded by Council Member Brown to remove .3Mills for the job and site fun from the BCEDC and put it to Capital Improvement Projects.

The Vote - Voting Yea: Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Lawson, Council Member McElynn, and Council Member Reitz.

Voting Nay: Chair Howard, Council Member Dawson, Council Member Glover, and Council Member Passiment. The motion to amend passed 6:4

* The subsequent proceeding lacked parliamentary procedure, therefore 6:4 will be the final action for the motion.

Motion to Amend: It was moved by Vice-Chair Tabernik, seconded by Council Member Cunningham to fund TCL and USCB at last fiscal year's funding amounts. TCL would receive $3,278,447 for this fiscal year and USCB would receive $3,278,447 for this fiscal year.

The Vote - Voting Yea: Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, and Council Member Reitz.

Voting Nay: Chair Howard, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, and Council Member Passiment. The motion to amend failed 4:6

Motion to Amend: It was moved by Vice-Chair Tabernik, seconded by Council Member Cunningham to remove the allocation of $398,000 in community services grant funds.

The Vote - Voting Yea: Vice-Chair Tabernik

Voting Nay: Chair Howard, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion to amend failed 1:9.

Motion to Amend: It was moved by Vice-Chair Tabernik, seconded by Council Member Cunningham to remove funding for Small Business Development.

The Vote - Voting Yea: Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, and Council Member Reitz.

Voting Nay: Chair Howard, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, and Council Member Passiment. The motion to amend failed 4:6.

Motion to Amend: It was moved by Vice-Chair Tabernik, seconded by Council Member Cunningham to reduce LRTA FY27 to 3% (equal to personnel increases) which would fund them at $739,168 for this fiscal year.

The Vote - Voting Yea: Vice-Chair Tabernik, Council Member Brown, and Council Member Cunningham.

Voting Nay: Chair Howard, Council Member Dawson, Council Member Glover, Council Member

Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion to amend failed 3:7.

Motion to Amend: It was moved by Vice-Chair Tabernik, seconded by Council Member Cunningham to remove .3Mills for the job and site fun from the BCEDC and put it to Capital Improvement.

The Vote - Voting Yea: Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Lawson, and Council Member Reitz.

Voting Nay: Chair Howard, Council Member Dawson, Council Member Glover, Council Member McElynn and Council Member Passiment. The motion to amend failed 5:5

* The subsequent proceeding lacked parliamentary procedure. Therefore, the motion made at the beginning of the agenda item will stand. 6:4 will be the final action for the motion.

Motion to Amend: It was moved by Vice-Chair Tabernik, seconded by Council Member Cunningham to approve 2 new FTEs ($99,392) as requested from the Treasurer and funding will come from the vehicle equipment line item.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, and Council Member Reitz.

Voting Nay: Council Member Passiment. The motion to amend passed 9:1

Motion to Amend: It was moved by Vice-Chair Tabernik, seconded by Council Member Reitz to increase the Solicitor's allotment from $16.21/per capita to $17/per capita for a total of $161,598 and funding will come from the vehicle equipment line item.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Lawson, Council Member McElynn, Council Member Passiment and Council Member Reitz.

Voting Nay: Council Member Glover. The motion to amend passed 9:1

Motion to Amend: It was moved by Vice-Chair Tabernik, seconded by Council Member Passiment to give $18,000 to the Tri-Share project and funding will come from the vehicle equipment line item.

The Vote - Voting Yea: Vice-Chair Tabernik, Council Member Glover, Council Member McElynn, and Council Member Passiment.

Voting Nay: Chair Howard, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Lawson, and Council Member Reitz. The motion to amend failed 4:6

Motion to Amend: It was moved by Council Member Cunningham, seconded by Council Member Lawson to remove language from section VIII in the ordinance - The County Administrator or the CFO is permitted, when it is in the best interest of the individual County departments or agencies, to transfer appropriations between departments (from one department to another department) and between the County's General Fund, Capital Projects Fund and Capital Improvements Fund (from one Fund to another Fund) up to $150,000.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member

Cunningham, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment and Council Member Reitz.

Voting Nay: Council Member Dawson. The motion to amend passed 9:1

Main Motion: It was moved by Council Member Passiment, seconded by Vice-Chair Tabernik to approve First Reading of Beaufort County Ordinance 2026/29 as amended five times.

The Vote - Voting Yea: Chair Howard, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz.

Voting Nay: Vice-Chair Tabernik. The amended motion passed 9:1.

d. 2026/30: An Ordinance Providing for a 2026 Transportation Sales Tax Referendum.

The vote at Public Facilities Committee on May 18, 2026 - 5:2

Motion: It was moved by Council Member Passiment, seconded by Council Member Dawson to approve First Reading of Beaufort County Ordinance 2026/30.

Motion to Amend: It was moved by Council Member Lawson, seconded by Council Member Cunningham for Council not to tax unprepared foods and make it a 9 year tax to collect the same amount of money.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion to amend passed 10:0.

Main Motion: It was moved by Council Member Passiment, seconded by Council Member Dawson to approve First Reading of Beaufort County Ordinance 2026/30 as amended.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The amended motion passed 10:0.

e. 2026/31: An Ordinance to amend Beaufort County's Parks and Recreation Ordinance (Ordinance NO. 2018/41 Sec. 90-33) to change the Parks and Recreations Board's authority to set fees and rates.

The vote at Community Services and Public Safety Committee on May 4, 2026 - 7:0

Motion: It was moved by Council Member Lawson, seconded by Chair Howard to approve First Reading of Beaufort County Ordinance 2026/31.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

f. 2026/32: An Ordinance Amending the Community Development Code (CDC): Table 3.1.60 (Consolidated Use Table), Table 3.2.40. H (T2R Allowed Uses), and Division 4.1 (Specific to Use).

The vote at Natural Resources Committee on May 4, 2026 - 6:0

Motion: It was moved by Chair Howard, seconded by Council Member Passiment to approve First Reading of Beaufort County Ordinance 2026/32.

Motion: It was moved by Chair Howard, seconded by Council Member Glover to approve First Reading of Beaufort County Ordinance 2026/32 for the following reasons: it is consistent with the goals, objectives, and policies of the Comprehensive Plan; it is not in conflict with any provision of this Development Code or the Code of Ordinances; it is required by changed conditions; it does address a demonstrated community need; it is consistent with the purpose and intent of the zones in this Development Code, or would improve compatibility among uses and ensure efficient development within the county; it would result in a logical and orderly development pattern; and it would not result in adverse impacts on the natural environment including but not limited to water, air, noise, stormwater management, wildlife, vegetation, wetlands, and the natural functioning of the environment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

g. 2026/33: An Ordinance Amending the Community Development Code (CDC): Division 5.10 (Historic Preservation), Section 7.2.120 (Certificate Of Appropriateness), Section 7.3.80 (Historic Designation), Section 7.4.50 (Public Hearing Scheduling and Notice), and Section 7.5.40 (Historic Preservation Review Board (Hprb)).

   The vote at Natural Resources Committee on May 4, 2026 - 6:0

Motion: It was moved by Council Member Glover, seconded by Council Member Passiment to approve First Reading of Beaufort County Ordinance 2026/33.

Motion: It was moved by Council Member Glover, seconded by Council Member Passiment to approve First Reading of Beaufort County Ordinance 2026/33 for the following reasons: it is consistent with the goals, objectives, and policies of the Comprehensive Plan; it is not in conflict with any provision of this Development Code or the Code of Ordinances; it is required by changed conditions; it does address a demonstrated community need; it is consistent with the purpose and intent of the zones in this Development Code, or would improve compatibility among uses and ensure efficient development within the county; it would result in a logical and orderly development pattern; and it would not result in adverse impacts on the natural environment including but not limited to water, air, noise, stormwater management, wildlife, vegetation, wetlands, and the natural functioning of the environment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz.

Voting Nay: Council Member Brown. The motion passed 9:1.

h. 2026/34: An Ordinance to appropriate and issue a refund of impact fees paid for the Garden Oaks Apartments affordable housing development.

   The vote at Finance, Administration, and Economic Development Committee on May 18, 2026 - 5:3

Motion: It was moved by Chair Howard, seconded by Council Member Passiment to approve First Reading of Beaufort County Ordinance 2026/34.

The Vote - Voting Yea: Chair Howard, Council Member Glover, Council Member McElynn, and Council Member Passiment.

Voting Nay: Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Lawson, and Council Member Reitz. The motion failed 4:6.

i. 2026/35: An Ordinance authorizing the acceptance of Drainage Easements Associated with Drainage Systems in the Bay Pines Subdivision.

The vote at Public Facilities Committee on May 18, 2026 - 7:0

Motion: It was moved by Council Member Reitz, seconded by Council Member Passiment to approve First Reading of Beaufort County Ordinance 2026/35.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

j. 2026/36: An Ordinance Authorizing a Lease Agreement between Beaufort County and the General Services Administration (GSA) for Transportation Security Administration (TSA) use within the Hilton Head Island Airport terminal.

The vote at Public Facilities Committee on May 18, 2026 - 6:0

Motion: It was moved by Council Member Reitz, seconded by Council Member Passiment to approve First Reading of Beaufort County Ordinance 2026/36.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

13. Resolutions

a. 2026/20: A Resolution to Use Organics-First Integrated Pest Management Practices and Standards to Prioritize the Use of Prevention-Based, Least Toxic, Organic Practices and Reduce the Use of Synthetic Pesticides for Public Land Management Where Possible.

The vote at Community Services and Public Safety Committee on May 4, 2026 - 6:1

Motion: It was moved by Council Member Passiment, seconded by Council Member Cunningham to approve Beaufort County Resolution 2026/20.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

b. 2026/21: A Resolution for a Third Addendum to the Memorandum of Agreement (MOA) with the Town of Hilton Head Island for the St. James Baptist Church Relocation Project.

The vote at Public Facilities Committee on May 18, 2026 - 7:0

Motion: It was moved by Council Member Passiment, seconded by Council Member Reitz to approve Beaufort County Resolution 2026/21.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

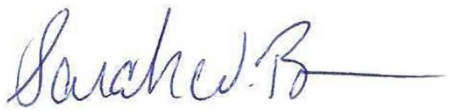
14. Adjournment

COUNTY COUNCIL OF BEAUFORT COUNTY



BY: _____
Alice G. Howard, Chairman

ATTEST:



_____
Sarah W. Brock, Clerk to Council
Ratified: June 8, 2026